

HOUSE BILL No. 1069

DIGEST OF INTRODUCED BILL

Citations Affected: IC 22-3.

Synopsis: Choice of physician for worker injury or disease. Permits an employee to choose the attending physician who will provide services and goods resulting from an employment injury or occupational disease for purposes of the worker's compensation law.

Effective: Upon passage; July 1, 2026.

Moseley

December 5, 2025, read first time and referred to Committee on Employment, Labor and Pensions.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1069

A BILL FOR AN ACT to amend the Indiana Code concerning labor and safety.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 22-3-3-4, AS AMENDED BY P.L.275-2013,
2 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 4. (a) After an injury and prior to an adjudication
4 of permanent impairment, the employer ~~shall furnish or cause to be~~
5 ~~furnished~~, **is responsible for providing**, free of charge to the
6 employee, an attending physician for the treatment of the employee's
7 injuries, and in addition thereto ~~such~~ **the** services and products ~~as that~~
8 the attending physician or the worker's compensation board may deem
9 **reasonably necessary. After June 30, 2026, the employee is entitled**
10 **to choose the attending physician that the employer is required to**
11 **provide, free of charge, regardless of whether the injury occurred**
12 **before July 1, 2026. If, due to the nature of the injury, the employee**
13 **is unable to select an attending physician or does not select an**
14 **attending physician and the nature of the injury requires**
15 **immediate treatment and care, the employer shall select an**
16 **attending physician for the employee as required or appropriate to**
17 **provide immediate treatment and care. The employer shall provide**



1 or cause to be provided an attending physician during any time
2 that the employee has not chosen an attending physician. When
3 medically necessary or advisable, or at the request of the employee,
4 the attending physician shall consult with the employee's personal
5 physician. Notice that the employee has chosen an attending
6 physician and notice of the provision of services and products as
7 they occur shall be given to the employer and the employer's
8 insurance carrier as required under rules adopted by the worker's
9 compensation board. If the employee is requested or required by the
10 employer to submit to treatment outside the county of employment, the
11 employer shall also pay the reasonable expense of travel, food, and
12 lodging necessary during the travel, but not to exceed the amount paid
13 at the time of the travel by the state to its employees under the state
14 travel policies and procedures established by the department of
15 administration and approved by the state budget agency. If the
16 treatment or travel to or from the place of treatment causes a loss of
17 working time to the employee, the employer shall reimburse the
18 employee for the loss of wages using the basis of the employee's
19 average daily wage.

20 (b) During the period of temporary total disability resulting from the
21 injury, the employer ~~shall furnish~~ **is responsible for providing to the**
22 **employee, free of charge,** the physician, services, and products, and
23 the worker's compensation board may, on proper application of either
24 party, require that treatment by the physician and services and products
25 be furnished by or on behalf of the employer as the worker's
26 compensation board may deem reasonably necessary. **After June 30,**
27 **2026, the employee is entitled to choose the physician and obtain**
28 **the services and products that the chosen physician or the worker's**
29 **compensation board deem reasonably necessary, free of charge,**
30 **regardless of whether the injury occurred before July 1, 2026. The**
31 **employer shall provide or cause to be provided an attending**
32 **physician during any time that the employee has not chosen an**
33 **attending physician. When medically necessary or advisable, or at**
34 **the request of the employee, the attending physician shall consult**
35 **with the employee's personal physician. Notice that the employee**
36 **has received physician services and products chosen by the**
37 **employee shall be given to the employer and the employer's**
38 **insurance carrier as required under the rules of the worker's**
39 **compensation board.**

40 (c) After an employee's injury has been adjudicated by agreement
41 or award on the basis of permanent partial impairment and within the
42 statutory period for review in such case as provided in section 27 of



1 this chapter, the employer may continue to ~~furnish~~ **provide to the**
 2 **employee, free of charge**, a physician or surgeon and other medical
 3 services and products, and the worker's compensation board may within
 4 the statutory period for review as provided in section 27 of this chapter,
 5 on a proper application of either party, require that treatment by that
 6 physician and other services and products be furnished by and on
 7 behalf of the employer as the worker's compensation board may deem
 8 necessary to limit or reduce the amount and extent of the employee's
 9 impairment. **If the employer chooses to continue providing a**
 10 **physician or surgeon, after June 30, 2026, the employee is entitled**
 11 **to choose the physician or surgeon and obtain the services and**
 12 **products that the chosen physician or surgeon or the worker's**
 13 **compensation board deem reasonably necessary, regardless of**
 14 **whether the injury occurred before July 1, 2026. The employer**
 15 **may provide or cause to be provided the physician or surgeon**
 16 **during any time that the employee has not chosen an attending**
 17 **physician. When medically necessary or advisable, or at the**
 18 **request of the employee, the attending physician shall consult with**
 19 **the employee's personal physician. Notice that the employee has**
 20 **received physician or surgeon services and products chosen by the**
 21 **employee shall be given to the employer and the employer's**
 22 **insurance carrier as required under the rules of the worker's**
 23 **compensation board.** The refusal of the employee to accept such
 24 services and products, when provided by or on behalf of the employer,
 25 shall bar the employee from all compensation otherwise payable during
 26 the period of the refusal, and the employee's right to prosecute any
 27 proceeding under IC 22-3-2 through IC 22-3-6 shall be suspended and
 28 abated until the employee's refusal ceases. The employee must be
 29 served with a notice setting forth the consequences of the refusal under
 30 this section. The notice must be in a form prescribed by the worker's
 31 compensation board. No compensation for permanent total impairment,
 32 permanent partial impairment, permanent disfigurement, or death shall
 33 be paid or payable for that part or portion of the impairment,
 34 disfigurement, or death which is the result of the failure of the
 35 employee to accept the services and products required under this
 36 section. However, an employer may at any time permit an employee to
 37 have treatment for the employee's injuries by spiritual means or prayer
 38 in lieu of the physician or surgeon and other services and products
 39 required under this section.

40 (d) If, because of an emergency, or because of the employer's failure
 41 to provide an attending physician or services and products, or treatment
 42 by spiritual means or prayer, as required by this section, or because of



any other good reason, a physician ~~other than that provided~~ **chosen by the employee and not otherwise furnished** by the employer treats the injured employee during the period of the employee's temporary total disability, or necessary and proper services and products are procured within the period, the reasonable cost of those services and products shall, subject to the approval of the worker's compensation board, be paid by the employer.

(e) An employer or employer's insurance carrier may not delay the provision of emergency medical care whenever emergency medical care is considered necessary in the professional judgment of the attending health care facility physician.

(f) Regardless of when it occurs, where a compensable injury results in the amputation of a body part, the enucleation of an eye, or the loss of natural teeth, the employer shall furnish an appropriate artificial member, braces, and prosthodontics. The cost of repairs to or replacements for the artificial members, braces, or prosthodontics that result from a compensable injury pursuant to a prior award and are required due to either medical necessity or normal wear and tear, determined according to the employee's individual use, but not abuse, of the artificial member, braces, or prosthodontics, shall be paid from the second injury fund upon order or award of the worker's compensation board. The employee is not required to meet any other requirement for admission to the second injury fund.

(g) If an accident arising out of and in the course of employment after June 30, 1997, results in the loss of or damage to an artificial member, a brace, an implant, eyeglasses, prosthodontics, or other medically prescribed device, the employer shall repair the artificial member, brace, implant, eyeglasses, prosthodontics, or other medically prescribed device or furnish an identical or a reasonably equivalent replacement.

(h) This section may not be construed to prohibit an agreement between an employer and the employer's employees that has the approval of the board and that binds the parties to:

- (1) medical care furnished by medical service providers selected by agreement before or after injury; or
- (2) the findings of a medical service provider who was chosen by agreement.

SECTION 2. IC 22-3-7-17, AS AMENDED BY P.L.275-2013, SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 17. (a) During the period of disablement, the employer ~~shall furnish or cause to be furnished;~~ **is responsible for providing**, free of charge to the employee, an attending physician for



1 the treatment of the employee's occupational disease, and in addition
 2 thereto ~~such the~~ services and products as ~~that~~ the attending physician
 3 or the worker's compensation board may deem necessary. **After June**
 4 **30, 2026, the employee is entitled to choose the attending physician**
 5 **that the employer is required to provide, free of charge, regardless**
 6 **of whether the occupational disease occurred before July 1, 2026.**
 7 **If, due to the nature of the occupational disease, the employee is**
 8 **unable to select an attending physician or does not select an**
 9 **attending physician and the nature of the occupational disease**
 10 **requires immediate treatment and care, the employer shall select**
 11 **an attending physician for the employee as required or appropriate**
 12 **to provide immediate treatment and care. The employer shall**
 13 **provide or cause to be provided an attending physician during any**
 14 **time that the employee has not chosen an attending physician.**
 15 **When medically necessary or advisable, or at the request of the**
 16 **employee, the attending physician shall consult with the employee's**
 17 **personal physician. Notice that the employee has chosen an**
 18 **attending physician and notice of the provision of services and**
 19 **products as they occur shall be given to the employer and the**
 20 **employer's insurance carrier as required under rules adopted by**
 21 **the worker's compensation board.** If the employee is requested or
 22 required by the employer to submit to treatment outside the county of
 23 employment, the employer shall also pay the reasonable expense of
 24 travel, food, and lodging necessary during the travel, but not to exceed
 25 the amount paid at the time of the travel by the state of Indiana to its
 26 employees. If the treatment or travel to or from the place of treatment
 27 causes a loss of working time to the employee, the employer shall
 28 reimburse the employee for the loss of wages using the basis of the
 29 employee's average daily wage.

30 (b) During the period of disablement resulting from the occupational
 31 disease, the employer ~~shall furnish~~ **is responsible for providing to the**
 32 **employee, free of charge, such the** physician, services and products,
 33 and the worker's compensation board may, on proper application of
 34 either party, require that treatment by ~~such the~~ physician and ~~such the~~
 35 services and products be furnished by or on behalf of the employer as
 36 the board may deem reasonably necessary. **After June 30, 2026, the**
 37 **employee is entitled to choose the physician and obtain the services**
 38 **and products that the chosen physician or the worker's**
 39 **compensation board deem reasonably necessary, free of charge,**
 40 **regardless of whether the occupational disease occurred before**
 41 **July 1, 2026. The employer shall provide or cause to be provided**
 42 **an attending physician during any time that the employee has not**



1 chosen an attending physician. When medically necessary or
 2 advisable, or at the request of the employee, the attending
 3 physician shall consult with the employee's personal physician.
 4 Notice that the employee has received physician services and
 5 products chosen by the employee shall be given to the employer
 6 and the employer's insurance carrier as required under the rules
 7 of the worker's compensation board. After an employee's
 8 occupational disease has been adjudicated by agreement or award on
 9 the basis of permanent partial impairment and within the statutory
 10 period for review in such case as provided in section 27(i) of this
 11 chapter, the employer may continue to furnish a physician or a surgeon
 12 and other services and products, and the board may, within ~~such the~~
 13 statutory period for review as provided in section 27(i) of this chapter,
 14 on a proper application of either party, require that treatment by ~~such~~
 15 the physician or surgeon and ~~such the~~ services and products be
 16 furnished by and on behalf of the employer as the board may deem
 17 necessary to limit or reduce the amount and extent of ~~such the~~
 18 employee's impairment. If the employer chooses to continue
 19 providing a physician or surgeon, after June 30, 2026, the employee
 20 is entitled to choose the physician or surgeon and obtain the
 21 services and products that the chosen physician or surgeon or the
 22 worker's compensation board deem reasonably necessary,
 23 regardless of whether the occupational disease occurred before
 24 July 1, 2026. The employer may provide or cause to be provided
 25 the physician or surgeon during any time that the employee has not
 26 chosen an attending physician. When medically necessary or
 27 advisable, or at the request of the employee, the attending
 28 physician shall consult with the employee's personal physician.
 29 Notice that the employee has received physician or surgeon
 30 services and products chosen by the employee shall be given to the
 31 employer and the employer's insurance carrier as required under
 32 the rules of the worker's compensation board. The refusal of the
 33 employee to accept such services and products when so provided by or
 34 on behalf of the employer, shall bar the employee from all
 35 compensation otherwise payable during the period of such refusal and
 36 the employee's right to prosecute any proceeding under this chapter
 37 shall be suspended and abated until such refusal ceases. The employee
 38 must be served with a notice setting forth the consequences of the
 39 refusal under this section. The notice must be in a form prescribed by
 40 the worker's compensation board. No compensation for permanent total
 41 impairment, permanent partial impairment, permanent disfigurement,
 42 or death shall be paid or payable for that part or portion of ~~such the~~



1 impairment, disfigurement, or death which is the result of the failure of
 2 ~~such the~~ employee to accept ~~such the~~ services and products, provided
 3 that an employer may at any time permit an employee to have treatment
 4 for the employee's disease or injury by spiritual means or prayer in lieu
 5 of ~~such the~~ physician, services and products.

6 (c) Regardless of when it occurs, where a compensable occupational
 7 disease results in the amputation of a body part, the enucleation of an
 8 eye, or the loss of natural teeth, the employer shall furnish an
 9 appropriate artificial member, braces, and prosthodontics. The cost of
 10 repairs to or replacements for the artificial members, braces, or
 11 prosthodontics that result from a compensable occupational disease
 12 pursuant to a prior award and are required due to either medical
 13 necessity or normal wear and tear, determined according to the
 14 employee's individual use, but not abuse, of the artificial member,
 15 braces, or prosthodontics, shall be paid from the second injury fund
 16 upon order or award of the worker's compensation board. The
 17 employee is not required to meet any other requirement for admission
 18 to the second injury fund.

19 (d) If an emergency or because of the employer's failure to provide
 20 ~~such the~~ attending physician or ~~such the~~ services and products or ~~such~~
 21 ~~the~~ treatment by spiritual means or prayer as specified in this section,
 22 or for other good reason, a physician ~~other than that provided chosen~~
 23 **by the employee and not otherwise furnished** by the employer treats
 24 the diseased employee within the period of disability, or necessary and
 25 proper services and products are procured within the period, the
 26 reasonable cost of ~~such the~~ services and products shall, subject to
 27 approval of the worker's compensation board, be paid by the employer.

28 (e) An employer or employer's insurance carrier may not delay the
 29 provision of emergency medical care whenever emergency medical
 30 care is considered necessary in the professional judgment of the
 31 attending health care facility physician.

32 (f) This section may not be construed to prohibit an agreement
 33 between an employer and employees that has the approval of the board
 34 and that:

- 35 (1) binds the parties to medical care furnished by medical service
- 36 providers selected by agreement before or after disablement; or
- 37 (2) makes the findings of a medical service provider chosen in
- 38 this manner binding upon the parties.

39 (g) The employee and the employee's estate do not have liability to
 40 a medical service provider for payment for services obtained under this
 41 section. The right to order payment for all services provided under this
 42 chapter is solely with the board. All claims by a medical service



1 provider for payment for services are against the employer and the
 2 employer's insurance carrier, if any, and must be made with the board
 3 under this chapter. After June 30, 2011, a medical service provider
 4 must file an application for adjustment of a claim for a medical service
 5 provider's fee with the board not later than two (2) years after the
 6 receipt of an initial written communication from the employer, the
 7 employer's insurance carrier, if any, or an agent acting on behalf of the
 8 employer after the medical service provider submits a bill for services.
 9 To offset a part of the board's expenses related to the administration of
 10 medical service provider reimbursement disputes, a medical service
 11 facility shall pay a filing fee of sixty dollars (\$60) in a balance billing
 12 case. The filing fee must accompany each application filed with the
 13 board. If an employer, employer's insurance carrier, or an agent acting
 14 on behalf of the employer denies or fails to pay any amount on a claim
 15 submitted by a medical service facility, a filing fee is not required to
 16 accompany an application that is filed for the denied or unpaid claim.
 17 A medical service provider may combine up to ten (10) individual
 18 claims into one (1) application whenever:

- 19 (1) all individual claims involve the same employer, insurance
- 20 carrier, or billing review service; and
- 21 (2) the amount of each individual claim does not exceed two
- 22 hundred dollars (\$200).

23 SECTION 3. [EFFECTIVE UPON PASSAGE] **(a) The worker's**
 24 **compensation board of Indiana may adopt rules under IC 4-22-2**
 25 **to implement the amendments made by this act to IC 22-3-3-4 and**
 26 **IC 22-3-7-17.**

27 **(b) This SECTION expires December 31, 2027.**

28 SECTION 4. **An emergency is declared for this act.**

